

CITY OF LORAIN

PARKS & RECREATION FACILITIES WAIVER AND RELEASE AGREEMENT

This Waiver and Release Agreement ("Agreement") is entered into by and between the undersigned participant ("Participant") and the City of Lorain on the date indicated below the Participant's signature.

In consideration of being permitted by the City of Lorain to participate at Lorain City Parks and Recreational Facilities, I hereby waive, release and discharge any and all claims for damage for personal injury, death or property damage which I may have, or which may hereafter accrue to me, as a result of participation in activities at this or any other Lorain Park and Recreation Facility. This Agreement is intended to release and discharge in advance the City of Lorain, its officers, employees and agents from any and all liability arising out of or connected in any way with my participation in activities at this or any other Lorain Park and Recreation Facility even though that liability may arise out of negligence or carelessness on the part of those parties. It is understood that activities such as the ones I will be participating in involve an element of risk and danger of accidents and knowing those risks, I hereby assume those risks. It is further agreed that this Agreement waiver, release, and assumption of risk is to be binding on my heirs and assignees. I agree to indemnify and to hold harmless, the City of Lorain, its officers, employees and agents from any loss, liability, damage, cost or expense which they may incur as the result of my death or any injury or property damage that I may sustain while participating in any activity at this or any other Lorain Park and Recreation Facility.

****FOR PARTICIPANTS WITHOUT LEGAL CAPACITY****

I hereby consent that the Participant may participate in activities at this, or any Lorain Park and Recreation Facility and I hereby execute the Agreement on his/her behalf. I hereby affirmatively state that the said Participant is physically able to participate in said activity. I hereby agree to indemnify and hold the person and entities mentioned above free and harmless from any loss, liability, damage, cost or expense that they may incur as result of the

death or any injury or property damage that said Participant may sustain while participating in activities at such Lorain Park and Recreation Facility.

I further acknowledge and agree that this Agreement is self-executing upon the Participant's, or his/her legal custodian's, execution.

The completed waiver and release agreement must be signed by all participants and returned to the Parks & Recreation Department 24 hours prior to rental.

I agree to the terms and conditions

Participant's Name: *(Print)*

Date:

Participant / Legal Custodian Signature:

(Signature)

— Complete the fields below only if the Participant is a minor —

Parent / Guardian Name: *(Print)*

Parent / Guardian Signature:

(Signature)

Parent / Guardian Date: